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By E-mail

Ms. Ashley Armstrong
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Department of Energy
Building Technologies Program
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1000 Independence Avenue, SW
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AirCleaners2021STD0035@ee.doe.gov

Re: Joint Comments on DOE's Notice of Proposed Rulemaking on Energy Conservation Standards for Air Cleaners; Docket No. EERE-2021-BT-STD-0035; RIN 1904-AF26

Dear Ms. Armstrong:

The Association of Home Appliance Manufacturers (AHAM) respectfully submits the following comments to the Department of Energy (DOE or Department) on its Notice of Proposed Rulemaking on Energy Conservation Standards For Air Cleaners; EERE-2021-BT-STD-0035; RIN 1904-AF26; 88 Fed. Reg. 215412 (April 11, 2023). We also participated in Joint Comments with the American Council for an Energy-Efficient Economy (ACEEE), the Appliance Standards Awareness Project (ASAP), Consumer Federation of America (CFA), and the Natural Resources Defense Council (NRDC) (collectively, including AHAM, the Joint Commenters) on this docket; we actively participated in the development of those comments and fully support the positions therein. AHAM is filing these supplemental comments to highlight an additional point for DOE's consideration.

Specifically, AHAM wishes to clarify that vacuum cleaners with a secondary air cleaning function are not meant to be covered products under this rulemaking (i.e., energy conservation standards) or the applicable test procedure in 10 CFR Part 430 Appendix FF. Air cleaners are currently defined in 10 CFR § 430.2 as "a product for improving indoor air quality, other than a central air conditioner, room air conditioner, portable air conditioner, dehumidifier, and furnace, that is an electrically-powered, self-contained, mechanically encased assembly that contains means to remove, destroy, or deactivate particulates, VOC, and/or microorganisms from the air. It excludes products that operate solely by means of ultraviolet light without a fan for air circulation."

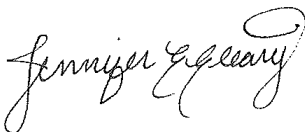
There are currently vacuum cleaners available on the market that clean the air as a secondary function. When evaluating the air cleaning function of these products according to the proposed

rule, the primary function (vacuuming) continues. In other words, the air filter function is not an independent function of the vacuum—and the product is not intended to be plugged in on an ongoing basis. Instead, the two functions work simultaneously during the primary vacuuming function when the vacuum is turned on. The vacuum motor requires a substantial amount of power to create lift in order to remove particles from the carpet. If that same power setting (maximum) is also used for air cleaning, per the test procedure, then it is unlikely such a product could meet the standards DOE is proposing. Nor were these products considered when the Joint Commenters were developing our proposed standards which we presented to DOE in the Joint Proposal. Reducing power on the air cleaning function would negatively affect the performance of the vacuum cleaner, rendering it almost ineffective. For the reasons stated above, it is AHAM's understanding that vacuum cleaners that also clean the air while vacuuming are not under the scope of this rule or Appendix FF.

We note that AHAM has examined this issue as part of AHAM AC-7-2022 and we do not believe these products would be included. We think it would be sufficient for DOE to clarify that these products are not intended to be in scope via guidance. But if DOE believes a rule change is needed, DOE could also indicate in section 2.2.2 of the test that if the secondary function is the air cleaning function and one of the secondary listed functions is the primary function as defined by the product safety certification listing, then the test method does not apply.

AHAM appreciates the opportunity to submit these comments in support of DOE's direct final rule and proposed rule on energy conservation standards for air cleaners and would be glad to discuss these matters in more detail should you so request.

Respectfully Submitted,



Jennifer Cleary
Vice President, Regulatory Affairs

About AHAM: AHAM represents more than 150 member companies that manufacture 90% of the major, portable and floor care appliances shipped for sale in the U.S. Home appliances are the heart of the home, and AHAM members provide safe, innovative, sustainable and efficient products that enhance consumers' lives. The home appliance industry is a significant segment of the economy, measured by the contributions of home appliance manufacturers, wholesalers, and retailers to the U.S. economy. In all, the industry drives nearly \$200 billion in economic output throughout the U.S. and manufactures products with a factory shipment value of more than \$50 billion.